

STATE OF NEW YORK

2533--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 17, 2025

Introduced by M. of A. DINOWITZ, WEPRIN, COLTON, SEAWRIGHT -- read once and referred to the Committee on Judiciary -- recommitted to the Committee on Judiciary in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the judiciary law and the labor law, in relation to creating additional remedies for unlawful discharge, penalty or discrimination on account of the exercise of a juror's right to be absent from employment for jury duty

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 519 of the judiciary law, as amended by section 2
2 of part LL of chapter 55 of the laws of 2025, is amended to read as
3 follows:
4 § 519. Right of juror to be absent from employment. Any person who is
5 summoned to serve as a juror under the provisions of this article and
6 who notifies their employer to that effect prior to the commencement of
7 a term of service shall not, on account of absence from employment by
8 reason of such jury service, be subject to discharge ~~[or]~~, penalty, or
9 discrimination in any other manner. An employer may, however, withhold
10 wages of any such employee serving as a juror during the period of such
11 service; provided that an employer who employs more than ten employees
12 shall not withhold the first seventy-two dollars of such juror's daily
13 wages during the first three days of jury service. Withholding of wages
14 in accordance with this section shall not be deemed a penalty or
15 discrimination. Violation of this section shall constitute a criminal
16 contempt of court punishable pursuant to section seven hundred fifty of
17 this chapter and shall also constitute a violation of section two
18 hundred fifteen of the labor law and be subject to the civil penalties
19 and civil action provided for thereunder.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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§ 2. Paragraph 7 of subdivision A of section 750 of the judiciary law, as amended by chapter 823 of the laws of 1982, is amended to read as follows:

7. Wilful failure to obey any mandate, process, or notice issued pursuant to ~~[articles]~~ article sixteen~~[, seventeen, eighteen, eighteen-a or eighteen-b]~~ of ~~[the judiciary law]~~ this chapter, or to rules adopted pursuant thereto, or to any other statute relating thereto, or refusal to be sworn as provided therein, or subjection of an employee to discharge ~~[or]~~, penalty, or discrimination in any other manner on account of ~~[his]~~ their absence from employment by reason of jury or subpoenaed witness service in violation of this chapter or section 215.11 of the penal law. Applications to punish the accused for a contempt specified in this subdivision may be made by notice of motion or by order to show cause, and shall be made returnable at the term of the supreme court at which contested motions are heard, or of the county court if the supreme court is not in session.

§ 3. Section 215 of the labor law, as amended by chapter 564 of the laws of 2010, paragraph (a) of subdivision 1 as amended by chapter 604 of the laws of 2022, paragraph (b) of subdivision 1 and paragraph (a) of subdivision 2 as amended by chapter 537 of the laws of 2014, is amended to read as follows:

§ 215. ~~[Penalties]~~ Civil penalties and civil action; prohibited retaliation. 1. (a) No employer or ~~[his or her]~~ their agent, or the officer or agent of any corporation, partnership, or limited liability company, or any other person, shall discharge, threaten, penalize, or in any other manner discriminate or retaliate against any employee (i) because such employee has made a complaint to ~~[his or her]~~ their employer, or to the commissioner or ~~[his or her]~~ their authorized representative, or to the attorney general or any other person, that the employer has engaged in conduct that the employee, reasonably and in good faith, believes violates any provision of this chapter, or any order issued by the commissioner, or (ii) because such employer or person believes that such employee has made a complaint to ~~[his or her]~~ their employer, or to the commissioner or ~~[his or her]~~ their authorized representative, or to the attorney general, or to any other person that the employer has violated any provision of this chapter, or any order issued by the commissioner, or (iii) because such employee has caused to be instituted or is about to institute a proceeding under or related to this chapter, or (iv) because such employee has provided information to the commissioner or ~~[his or her]~~ their authorized representative or the attorney general, or (v) because such employee has testified or is about to testify in an investigation or proceeding under this chapter, or (vi) because such employee has otherwise exercised rights protected under this chapter, or (vii) because the employer has received an adverse determination from the commissioner involving the employee, or (viii) because such employee has used any legally protected absence pursuant to federal, local, or state law, including because such employee has exercised their right to be absent from employment pursuant to section five hundred nineteen of the judiciary law by reason of jury service.

An employee complaint or other communication need not make explicit reference to any section or provision of this chapter to trigger the protections of this section.

As used in this section, to threaten, penalize, or in any other manner discriminate or retaliate against any employee includes; threatening to contact or contacting United States immigration authorities or otherwise reporting or threatening to report an employee's suspected citizenship

1 or immigration status or the suspected citizenship or immigration status
2 of an employee's family or household member, as defined in subdivision
3 two of section four hundred fifty-nine-a of the social services law, to
4 a federal, state or local agency; or assessing any demerit, occurrence,
5 any other point, or deductions from an allotted bank of time, which
6 subjects or could subject an employee to disciplinary action, which may
7 include but not be limited to failure to receive a promotion or loss of
8 pay.

9 (b) If after investigation the commissioner finds that an employer or
10 person has violated any provision of this section, the commissioner may,
11 by an order which shall describe particularly the nature of the
12 violation, assess the employer or person a civil penalty of not less
13 than one thousand nor more than ten thousand dollars provided, however,
14 that if the commissioner finds that the employer has violated the
15 provisions of this section in the preceding six years, ~~[he or she]~~ the
16 commissioner may assess a civil penalty of not less than one thousand
17 nor more than twenty thousand dollars. The commissioner may also order
18 all appropriate relief including enjoining the conduct of any person or
19 employer; ordering payment of liquidated damages to the employee by the
20 person or entity in violation; and, where the person or entity in
21 violation is an employer ordering rehiring or reinstatement of the
22 employee to ~~[his or her]~~ their former position or an equivalent posi-
23 tion, and an award of lost compensation or an award of front pay in lieu
24 of reinstatement and an award of lost compensation. Liquidated damages
25 shall be calculated as an amount not more than twenty thousand dollars.
26 The commissioner may assess liquidated damages on behalf of every
27 employee aggrieved under this section, in addition to any other remedies
28 permitted by this section.

29 (c) The provisions of section two hundred thirteen of this article
30 shall not apply to the violations specified in this section.

31 (d) This section shall not apply to employees of the state or any
32 municipal subdivisions or departments thereof.

33 2. (a) ~~[An]~~ In addition to the civil penalties provided for under
34 subdivision one of this section, an employee may bring a civil action in
35 a court of competent jurisdiction against any employer or persons
36 alleged to have violated the provisions of this section. The court shall
37 have jurisdiction to restrain violations of this section, within two
38 years after such violation, regardless of the dates of employment of the
39 employee, and to order all appropriate relief, including enjoining the
40 conduct of any person or employer; ordering payment of liquidated
41 damages, costs and reasonable attorneys' fees to the employee by the
42 person or entity in violation; and, where the person or entity in
43 violation is an employer, ordering rehiring or reinstatement of the
44 employee to ~~[his or her]~~ their former position with restoration of
45 seniority or an award of front pay in lieu of reinstatement, and an
46 award of lost compensation and damages, costs and reasonable attorneys'
47 fees. Liquidated damages shall be calculated as an amount not more than
48 twenty thousand dollars. The court shall award liquidated damages to
49 every employee aggrieved under this section, in addition to any other
50 remedies permitted by this section. The statute of limitations shall be
51 tolled from the date an employee files a complaint with the commissioner
52 or the commissioner commences an investigation, whichever is earlier,
53 until an order to comply issued by the commissioner becomes final, or
54 where the commissioner does not issue an order, until the date on which
55 the commissioner notifies the complainant that the investigation has
56 concluded. Investigation by the commissioner shall not be a prerequisite

1 to nor a bar against a person bringing a civil action under this
2 section.

3 (b) At or before the commencement of any action under this section,
4 notice thereof shall be served upon the attorney general by the employ-
5 ee.

6 3. Any employer or [~~his or her~~] their agent, or the officer or agent
7 of any corporation, partnership, or limited liability company, or any
8 other person who violates subdivision one of this section shall be guil-
9 ty of a class B misdemeanor.

10 § 4. This act shall take effect on the thirtieth day after it shall
11 have become a law.